

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Edward Tsigel	Team: Squad #16	CCRB Case #: 202202310	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 03/31/2022 3:00 PM	Location of Incident: Outside 112-20 Rockaway Boulevard	18 Mo. SOL 9/30/2023	Precinct: 106		
Date/Time CV Reported Fri, 04/01/2022 6:23 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 04/11/2022 10:27 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Yorlly Cyriaque	02849	951648	106 PCT
2. PO Justin Thompson	14187	963777	106 PCT
3. PO Kyle Beck	07651	960221	106 PCT
4. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO David Clark	09126	938233	106 PCT
2. PO Louis Laupheimer	27117	972354	106 PCT
3. PO Mario Giordano	15105	943299	106 PCT
4. PO Marc Waskowitz	22130	962867	106 PCT
5. PO Trent Arnold	09657	960175	106 PCT
6. DTS John Maderik	04336	894140	106 PCT
7. PO Yanel Peraltarodriguez	07362	962008	106 PCT
8. PO Edwin Diaz	16770	944505	106 PCT
9. PO Terryann Fergusonsmith	02268	961757	106 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . SGT Yorlly Cyriaque	Force: Sergeant Yorlly Cyriaque used physical force against § 87(2)(b)	A . Within NYPD Guidelines
B . PO Justin Thompson	Force: Police Officer Justin Thompson used physical force against § 87(2)(b)	B . Within NYPD Guidelines
C . PO Kyle Beck	Force: Police Officer Kyle Beck used physical force against § 87(2)(b)	C . Within NYPD Guidelines
D . An officer	Force: An officer restricted § 87(2)(b)'s breathing.	D . Unfounded
E . PO Justin Thompson	Discourtesy: Police Officer Justin Thompson spoke discourteously to § 87(2)(b)	E . Substantiated
F . SGT Yorlly Cyriaque	Abuse: Sergeant Yorlly Cyriaque stopped § 87(2)(b)	F . Within NYPD Guidelines
G . SGT Yorlly Cyriaque	Abuse: Sergeant Yorlly Cyriaque stopped § 87(2)(b)	G . Within NYPD Guidelines
H . SGT Yorlly Cyriaque	Abuse: Sergeant Yorlly Cyriaque failed to provide § 87(2)(b) with a business card.	H . Substantiated
I . SGT Yorlly Cyriaque	Abuse: Sergeant Yorlly Cyriaque failed to provide § 87(2)(b) with a business card.	I . Substantiated

Case Summary

On April 1, 2022, Lieutenant Justin Dambinkas of the 106th Precinct called IAB and reported this incident as a level two use of force. On May 27, 2022, the CCRB received this complaint via IAB log # 2022-07490.

On March 31, 2022, at approximately 3:00 PM, Sergeant Yorlly Cyriaque and Police Officer David Clark, both of the 106th Precinct, responded to a larceny in progress at the Home Depot at 112-20 Rockaway Boulevard in Queens. The officers pursued § 87(2)(b) into § 87(2)(b)'s vehicle. Sgt. Cyriaque opened the door and attempted to handcuff § 87(2)(b) by grabbing and pulling her arms (**Allegation A – Force – Within NYPD Guideline**). § 87(2)(b) threw herself into the trunk of the vehicle. Shortly after, Police Officer Justin Thompson, Police Officer Kyle Beck, Police Officer Mario Giordano, and additional officers, all of the 106th Precinct, responded to the scene. PO Thompson and PO Beck opened the trunk of the vehicle and pulled § 87(2)(b) as they handcuffed her (**Allegations B and C – Force – Within NYPD Guideline**). An officer allegedly restricted § 87(2)(b)'s breathing (**Allegation D – Force – Unfounded**). PO Thompson spoke discourteously towards § 87(2)(b) (**Allegation E – Discourtesy – Substantiated**). Sgt. Cyriaque stopped § 87(2)(b) and the front passenger, § 87(2)(b) (**Allegations F and G – Abuse of Authority – Within NYPD Guidelines**). Sgt. Cyriaque did not provide § 87(2)(b) nor § 87(2)(b) with a business card (**Allegations H and I – Abuse of Authority – Substantiated**).

§ 87(2)(g)

The CCRB received 12 Body Worn Camera (BWC) videos of this incident (BR 08 - 19).

§ 87(2)(b) was arrested for § 87(2)(b)

(BR 06).

Findings and Recommendations

Allegation (A) Force: Sergeant Yorlly Cyriaque used physical force against § 87(2)(b)

Allegation (B) Force: Police Officer Justin Thompson used physical force against § 87(2)(b)

Allegation (C) Force: Police Officer Kyle Beck used physical force against § 87(2)(b)

Allegation (D) Force: An officer restricted § 87(2)(b)'s breathing.

It is undisputed that on March 31, 2022, at approximately 3:00 PM, § 87(2)(b) (BR 01) stole items from the Home Depot at 112-20 Rockaway Boulevard. An unknown Home Depot employee called 911 (BR 05) and reported the theft and provided a description of § 87(2)(b). He described § 87(2)(b) as a Black female wearing a black jacket, blue shirt, and blue jeans, approximately 50 years old, and 5'5" tall. He also stated that § 87(2)(b) was with a Black male who was wearing a blue jacket and blue jeans, approximately 50 years old, and 5'5" tall. Sgt. Cyriaque (BR 02) and PO Clark pursued § 87(2)(b) who ran into § 87(2)(b)'s SUV in the parking lot. Sgt. Cyriaque, PO Clark, PO Thompson (BR 03), and PO Beck (BR 04) participated in handcuffing § 87(2)(b). § 87(2)(b) was arrested (BR 06).

§ 87(2)(b) (BR 01) stated that when PO Thompson and PO Beck entered the trunk of the SUV, they grabbed both of her calves and pinned her down on her stomach. One of the officers pressed down on § 87(2)(b)'s upper-middle back near her neck which made it difficult for her to breathe. § 87(2)(b) did not know which officer did so or which part of the officer's body pressed down on her back. Sgt. Cyriaque then reached into the trunk over the back seat, grabbed § 87(2)(b)'s left wrist, and pulled her arm behind her back. § 87(2)(b) heard her left arm crack. She stated that she did not resist the officers while being handcuffed in the trunk. Once § 87(2)(b) was at the stationhouse, she requested medical attention because her left arm began to hurt and she was transported to § 87(2)(b). § 87(2)(b)

§ 87(2)(b) (BR 07) was not interviewed because despite contact attempts he was not available. § 87(2)(b) was not interviewed because the investigation was unable to identify her.

At 1:30 of Sgt. Cyriaque's BWC video (BR 08), Sgt. Cyriaque exits her vehicle, approaches the SUV, and tells § 87(2)(b) to get § 87(2)(b) out of the vehicle. At 1:36, Sgt. Cyriaque opens the back passenger door, grabs and pulls § 87(2)(b) by her jacket, and tells her to put her hands behind her back. PO Clark opens the back passenger door on the other side of the SUV and attempts to grab § 87(2)(b). Sgt. Cyriaque tells § 87(2)(b) to exit the vehicle and § 87(2)(b) refuses to do so. § 87(2)(b) is pulling her body away from Sgt. Cyriaque and PO Clark and yelling, "Get off of me." At 2:35, § 87(2)(b) stands up on the back seat and throws herself into the trunk of the SUV. At 2:50, Sgt. Cyriaque grabs § 87(2)(b)'s left arm and attempts to handcuff her, but § 87(2)(b) pulls her arm away.

Between 1:10 and 1:49 of PO Beck's BWC video (BR 9), PO Beck and PO Thompson open the trunk of § 87(2)(b)'s SUV and grab § 87(2)(b). PO Beck and PO Thompson then pull § 87(2)(b)'s body so that she is on her stomach. The officers then handcuff § 87(2)(b). At 1:45, § 87(2)(b) says that the officers are breaking her arm and that she has asthma and cannot breathe. PO Beck places § 87(2)(b) on her side. At 2:45, PO Beck sits § 87(2)(b) up and she remains sitting in the trunk.

All other BWC videos (BR 10 - 19) are consistent with Sgt. Cyriaque's and PO Beck's BWC videos and provide additional angles of the incident. None of the footage shows officers using any additional force against § 87(2)(b). None of the footage captures officers putting any part of their bodies on § 87(2)(b)'s back or otherwise restricting her breathing at any point.

Sgt. Cyriaque (BR 02), PO Thompson (BR 03), and PO Beck (BR 04) all stated that they entered § 87(2)(b)'s SUV to arrest § 87(2)(b) for the reported theft. Sgt. Cyriaque stated that she and PO Clark attempted to handcuff § 87(2)(b) by grabbing her arms but she verbally and physically resisted by yelling at them to get away from her and not touch her, pulling her arms away from them, and kicking them. PO Thompson and PO Beck stated that in the trunk of the SUV they pulled § 87(2)(b)'s hands behind her back and handcuffed her while she resisted them. PO Thompson did not clarify how she resisted and PO Beck stated that she was flailing and tensing her arms. They denied intentionally injuring § 87(2)(b) restricting her breathing in any way, or hearing a cracking noise as a result of handcuffing her. PO Thompson and PO Beck stated that they put § 87(2)(b) in a seated or sideways "breathing position" after handcuffing her.

The Medical Treatment of Prisoner Report (MTPR) (BR 20) states that § 87(2)(b) requested medical attention, § 87(2)(b) from actively resisting and pushing her face against a seat.

Patrol Guide Procedure 221-02 (BR 21) states that officers are to use no more than the reasonable force necessary to gain control of a subject who is uncooperative and resisting being placed in custody. Active resistance is defined as physically evasive movements to defeat an officer's attempt at gaining control including tensing and/or verbally signaling intention to avoid being taken into custody. Active aggression is defined as a threat or overt act of assault with the present ability to carry out that threat of assault which reasonably indicates that an assault or injury to any person is imminent.

§ 87(2)(g)

It is therefore recommended that Allegations A to C be closed as **Within NYPD Guidelines**.

§ 87(2)(g)

It is therefore recommended that **Allegation D** be **Unfounded**.

Allegation (E) Discourtesy: Police Officer Justin Thompson spoke discourteously to

§ 87(2)(b)

Between 3:00 and 6:00 of PO Beck's BWC video (BR 09), § 87(2)(b) switches between sitting and lying in the trunk of the vehicle while PO Beck and PO Thompson stand next to her. § 87(2)(b) has a calm demeanor during this time. At 5:05, PO Thompson asks § 87(2)(b) if she had ever been arrested before and she says yes. PO Thompson responds, "For what? Bullshit?" § 87(2)(b) responds, "Yea."

PO Thompson (BR 03) stated that he used the word "bullshit" to generalize what § 87(2)(b) may or may not have been arrested for in the past. He said that using certain language can be effective in de-escalating situations. He did not use the word "bullshit" in a derogatory or discourteous manner to § 87(2)(b).

Patrol Guide Procedure 200-02 (BR 22) states that officers are to maintain a higher standard of integrity than is generally expected of others and to treat every citizen with compassion, courtesy, professionalism, and respect.

According to DCT case No. 2018-18951 (BR 23), officers have a responsibility to act with decorum in their interactions with civilians, though certain situations where profane remarks are made during a stressful or chaotic situation do not constitute misconduct.

§ 87(2)(g)

It is therefore recommended that **Allegation E** be **Substantiated**.

Allegation (F) Abuse of Authority: Sergeant Yorlly Cyriaque stopped § 87(2)(b)

Allegation (G) Abuse of Authority: Sergeant Yorlly Cyriaque stopped § 87(2)(b)

Allegation (H) Abuse of Authority: Sergeant Yorlly Cyriaque failed to provide § 87(2)(b) **with a business card.**

Allegation (I) Abuse of Authority: Sergeant Yorlly Cyriaque failed to provide § 87(2)(b) **with a business card.**

At 3:25 of Sgt. Cyriaque's BWC video (BR 08), she approaches § 87(2)(b) who is sitting in the driver seat of his vehicle. She tells § 87(2)(b) and § 87(2)(b) (Unknown) to give PO Giordano their IDs and that she does not know if they are under arrest yet because she needs to find out whether they were involved with § 87(2)(b). At 5:30, § 87(2)(b) tells Sgt. Cyriaque that § 87(2)(b) hired him to drive her around. He also says that § 87(2)(b) was with two additional men but he did not know where they went. At 6:05, Sgt. Cyriaque tells the officers to hold the SUV and that she will be back. At 6:40, Sgt. Cyriaque walks to the Home Depot and speaks to the employees. Additional officers come out of the store and tell Sgt. Cyriaque that § 87(2)(b) was the only one involved according to the employees. The employees were not sure who § 87(2)(b) was or if they were together but believed that they most likely were with § 87(2)(b). At 7:40, Sgt. Cyriaque returns to the SUV and tells the officers that § 87(2)(b) is the only one under arrest. At 10:10, Sgt. Cyriaque tells PO Giordano to run § 87(2)(b)'s and § 87(2)(b)'s ID. At 19:30, after § 87(2)(b) is arrested, Sgt. Cyriaque thanks § 87(2)(b) for cooperating and the officers leave the location. § 87(2)(b) drives away in his SUV. All other BWC footage (BR 09 – 19) is consistent with Sgt. Cyriaque's BWC video.

As mentioned above, § 87(2)(b) (BR 07) and § 87(2)(b) were not

interviewed.

Sgt. Cyriaque stated that § 87(2)(b) and § 87(2)(b) were not free to leave the location because she needed to confirm whether they were affiliated with § 87(2)(b) in committing theft, since she entered their SUV while fleeing from the officers. § 87(2)(b) stated that § 87(2)(b) hired him to drive her but he had no knowledge of her committing theft. They were free to leave once she determined that they were not involved in the theft. She did not offer them a business card because she did not believe that she was required to do so.

New York State Penal Law 155.25 (BR 24) states that a person is guilty of petit larceny when they steal property.

New York State Penal Law 115.00 (BR 25) states that a person is guilty of criminal facilitation in the fourth degree when they render aid to a person who intends to commit a crime, or engages in conduct which provides such person with means or opportunity for the commission of a crime.

Patrol Guide Procedure 212-11 (BR 26) states that if an officer has reasonable suspicion that an individual has committed a crime, they may conduct a level 3 stop and detain the person for the purpose of conducting a criminal investigation. The officer may ask accusatory or pointed questions and detain the person while an expeditious investigation is conducted to determine if there is probable cause to arrest the person.

§ 87(2)(g)

It is therefore recommended that **Allegations F and G** be closed as **Within NYPD Guidelines**.

Administrative Guide 304-11 (BR 27) states that when an officer conducts a level three stop, which does not result in an arrest being made or summons being issued, then the officer must offer a business card to the person in a professional manner upon the conclusion of the law enforcement activity.

§ 87(2)(g)

It is therefore recommended that **Allegations H and I** be **Substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) (BR 28) and § 87(2)(b) (BR 29) have been a party.
- Sergeant Yorlly Cyriaque has been a member of service for eleven years and has been listed as a subject in two CCRB complaints and six allegations, none of which were substantiated. § 87(2)(g)
- Police Officer Justin Thompson has been a member of service for six years and has been listed as a subject in two CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)
- Police Officer Kyle Beck has been a member of service for seven years and has been listed as a subject in two CCRB complaints and three allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED] [REDACTED]
[REDACTED]

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____